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IN THE HIGH COURT OF BOMBAY AT GOA
PANAJI - GOA

APPEAL FROM ORDER NO. OF 2020

IN THE MATTER OF APPEAL FROM
ORDER DATED 13.03.2020 PASSED BY
THE CIVIL JUDGE SENIOR DIVISION
'A' COURT, PANAJI, GOA IN SPECIAL
CIVIL SUIT NO. 52 OF 2013.

AND

IN THE MATTER OF APPLICATION
FOR TEMPORARY INJUNCTION
BEARING EXHIBIT NO. D-4 UNDER
ORDER XXXIX RULES 1 AND 2.

AND

IN THE MATTER OF ORDER XLIII
RULE (1) (r) OF THE CIVIL
PROCEDURE CODE 1908.

- (1) Pascoal Trindade
Son of late Agostine Trindade,
77 years of age, Indian national,
Occupation Business,
Resident of Palbrika Mansion,
Opp. Our Lady of Rosary High School,
Dona Paula, Taluka Tiswadi, Goa;

- (2) Albertina Trindade
 Wife of Pascoal Trindade,
 75 years of age, Indian national,
 Occupation Housewife,
 Resident of Palbrika Mansion,
 Opp. Our Lady of Rosary High School,
 Dona Paula, Taluka Tiswadi, Goa.

... Appellants

Versus

1. Comunidade of Bambolim,
 A body constituted and functioning
 under The Code of Comunidades
 1961, Represented therein by their
 duly elected Attorney, having their
 office at Bambolim Church
 road, P.O. GMC
 Complex, Bambolim, Ilhas Goa. –
 403202
2. Mrs. Dionisia Dias e Mergulhao,
 w/o late Maximo Mergulao, housewife,
 Model Residency, first floor, St Inez,
 Panaji, Tiswadi, Goa.
3. M/s Raghurai Tamba,
 A registered partnership firm,
 Through its partner Shri Raghurai Tamba
 Major in age, having its office at
 “Parimal” Altinho, Panaji-Goa.

4. Mr. Raghurai Tamba,
Major in age, businessman,
r/o "Parimal" Altinho, Panaji, Goa.
5. Mr. Pundalik Cuncolkar,
Son of late Parshuram Cuncolkar,
Major married, service and his wife,
6. Mrs. Sumati Pundalik Cuncolkar,
Major, service, Both r/o H.No. not
known, Palem, Siridao, Tiswadi, Goa.
7. Mrs. Ganga alias Shobha
Vasudev Narvekar, w/o late
Vasudev Narvekar, major,
daughter of late Parshuram
Cuncolkar, major,
housewife.
8. Ms. Mamtha Vadusev
Narvekar, Daughter of late
Vasudev Narvekar, Major,
unmarried, service, Both
r/o H.No. not known,
Goa Velha, Tiswadi –
Goa.
9. Mrs. Kensar Manuel Pereira
alias Kunkollikar, Wife of
Manuel Pereira, Daughter

of late Parshuram
Cuncolkar, Major, married,
housewife,

10. Mr. Manuel Pereira, s/o
late Joaquim Pereira, major
in age, married, service,
both r/o H.No. not known,
Cacra, St. Cruz, Ilhas –
Goa.

11. Mrs. Rukmini Bhikaro
Gauns Gomes, w/o late
Bhikaro Gauns alias
Gomes, major, r/o H.No.
not known, Modlowado,
Siridao, Palem, Tiswadi,
Goa.

12. Mrs. Geeta Prakash
Narvekar, w/o Prakash
Narvekar, d/o late
Bhikaro Gauns alias
Gomes, major,

13. Mr. Prakash Narvekar,
Major in age, married,
Government servant,
Indian National Both r/o
H.No. not

known, Taleigao, Tiswadi-
Goa.

14. Mrs. Chandrika Bhikaro
Gauns Alias Gomes alias
Lotlikar, d/o late Bhikaro
Gauns alias Gomes, major,
r/o H.No.not known,
Modlowado,
Siridao, Palem, Tiswadi,
Goa.

15. Mr. Madhu Cuncolkar alias
Canconkar, s/o Laximan
Cuncolkar, major, service.

16. Mrs. Succorina Madhu
Cuncolkar Alias
Canconkar, alias
Manisha Madhu Cuncolkar
alias Canconkar, w/o
Madhu cuncolkar alias
Canconkar, major,
housewife, both r/o H.No.
not known, Modlowado,
Siridao, Palem, Tiswadi,
Goa.

17. Mr. Rama Gomes alias
Lotlikar, s/o Sebastiao
Gomes, major, Service.

18. Smt. Sita Rama Gomes alias
Lotlikar, Housewife, both
r/o H.No. not known,
Palem, Siridao, Tiswadi,
Goa.

19. M/s. Loonkar Developers Pvt. Ltd.
Through Its Managing Director
having its registered office at 219,
Commerce House, 140, Nagindas
Master Road, Fort, Mumbai.

... Respondents

(above all are registered addresses)

**TO
THE HON'BLE CHIEF JUSTICE AND
HIS OTHER COMPANION JUDGES**

**THIS HUMBLE APPEAL OF THE
APPELLANTS ABOVE-NAMED**

MAY IT PLEASE YOUR LORDSHIPS:

1. The Appellants by way of this Appeal seek to invoke the Appellate Jurisdiction of this Hon'ble High Court vested in terms of Order XLIII Rule (1) (r) of the Civil Procedure Code, challenging the legality and validity of the Order dated 13.03.2020 passed by the Civil Judge Senior Division 'A' Court, Panaji, Goa in the Special Civil Suit No. 52 of 2013

whereby the Ld. Trial Court has restrained the Appellants by way of Temporary Injunction from starting any development and construction activities or changing the nature of the suit property and alienating, transferring the suit property under Survey No. 93/2, 3, 4 of Village Bambolim in any manner till the disposal of the suit disregarding the Consent Terms and Consent Decree dated 19.11.1998 and 21.11.1998 in favour of the Appellant's predecessor-in-title and registered Deeds of Sale executed in favour of the Appellants on 25.04.2006, in sheer violation of the settled principles of law circumscribing Order XXXIX Rules 1 and 2 of the Civil Procedure Code ("CPC").

ANNEXED HERETO AND MARKED AS **ANNEXURE**
- 1 IS THE CERTIFIED COPY OF THE ORDER DATED
 13.03.2020
 ("THE IMPUGNED ORDER")

2. By the Impugned Order dated 13.03.2020 the Ld. Trial Court has allowed the Application bearing Exhibit No. D-4 filed by the Respondent No. 1 (Plaintiffs in the Special Civil Suit No. 52 of 2013) under Order XXXIX Rules 1 and 2 of the CPC for grant of Temporary Injunction against the Appellants which was filed along with the Suit Plaint.

ANNEXED HERETO AND MARKED AS **ANNEXURE**
- 2 COLLY ARE THE COPIES OF THE SUIT PLAINT
 ALONG WITH THE APPLICATION UNDER ORDER
 XXXIX RULES 1 AND 2 DATED 08.11.2013

3. For the purposes of appreciating the Appellants' case it is necessary, in the first instance, to consider the allegations as contained in the Plaint which are as under:—

a. It is the Plaintiffs' case that the properties surveyed under Survey No. 93/2, 93/3 and 93/4 of Village Bambolim correspond to its properties namely "Saveli Gali" bearing Lote Nos. 47, 48A, 48B & 49 and "Oros" bearing Lote No. 43B.

b. That Special Civil Suit No. 222/1994/B came to be instituted on 01.12.1994 against the deceased husband of the Respondent No. 2, namely, late Maximo Melgulhao seeking the following reliefs —

i. For a declaration that the property identified under Survey No. 89/3 of Village Bambolim forms a part of the property 'Oros' bearing Lote No. 43, Adicao 'A' as per Book Tombo—I;

ii. For a permanent injunction, restraining the defendants, his servants, agents, attorneys and/or any other person or persons claiming through him from (i) carrying on any further construction in the suit property; and (ii) alienating the suit property in any form whatsoever, including claiming, mortgaging or creating third party rights.

ANNEXED HERETO AND MARKED AS **ANNEXURE**
— 3 IS THE COPY OF THE SUIT PLAINT IN SPECIAL
CIVIL SUIT NO. 222/1994/B

- c. On 19.11.1998 the Respondent No. 2 came to be brought on record and on the same day compromise terms to compromise/ settle the dispute between the Respondent No. 1 (Plaintiffs therein) and the Respondent No. 2 (Defendant therein) came to be filed.
- d. By Order dated 21.11.1998 the compromise terms filed by the parties on 19.11.1998 were ordered to be taken on record. It was also recorded that the compromise was lawful since the parties had voluntarily signed the compromise terms and accordingly a Consent Decree dated 21.11.1998 was drawn.

ANNEXED HERETO AND MARKED AS **ANNEXURE**
– **4 COLLY** ARE THE COPIES OF THE COMPROMISE
TERMS DATED 19.11.1998 AND THE CONSENT
DECREE DATED 21.11.1998 DRAWN IN SPECIAL
CIVIL SUIT NO. 222/1994/B

- e. That an Application *viz.* Civil Miscellaneous Application No. 6 of 2010 under Order XXIII Rule 3 read with Section 151 of the CPC for recall of Consent Decree dated 21.11.1998 recording the compromise dated 19.11.1998 came to be filed on 27.01.2010 essentially on the grounds that :–
 - i. There was no approval or resolution of the Managing Committee of the Respondent No. 1 and/ or Administrative Tribunal under the Code of Comunidade;

- ii. Special Attorney Jeronimo Monteiro and the Advocate of the Respondent No. 1 did not possess any authority to enter into the compromise;
- iii. The compromise terms were in effect a relinquishment of the rights of the Respondent No. 1 pertaining to properties surveyed under Survey No. 89/3, 90/1, 93/2, 93/3 and 93/4 in consideration of 45 plots totalling to 11,340 sq. mts out of which the Respondent No. 1 was allotted 1260 sq. mts and remaining to its Gaoncars who had nothing to do with the suit; and;
- iv. That the Special Attorney Jeronimo Monteiro conspired with Respondent No. 2 and 4 to compromise the matter without seeking necessary approvals.

ANNEXED HERETO AND MARKED AS **ANNEXURE**
 – 5 IS THE COPIES OF THE APPLICATION UNDER
 ORDER XXIII RULE 3 READ WITH SECTION 151 OF
 THE CPC

- f. Upon being permitted to intervene in the proceedings *viz.* Civil Miscellaneous Application No. 6 of 2010, this Appellants being a *bona fide* purchaser in good faith of the properties surveyed under Survey No. 93/2, 93/3 and 93/4 pleaded for rejection/ dismissal of the Application under Order XXIII Rule 3 CPC dated 27.01.2010. The case of this Appellants for rejection/ dismissal, in essence and substance, is as follows :-

- i. That the Application under Order XXIII Rule 3 CPC dated 27.01.2010 (“the Application”) was barred by the law of limitation, delay as well as laches in view of the Appellants’ own reliance on three letter communications dated 28.01.1997, 15.12.1997 and 03.02.1998 which are suggestive of the fact as to how the Respondent No. 1 acquired knowledge of the compromise.
- ii. That the Application was (even otherwise) not maintainable in view of the provision for a substantial appeal being provided for in terms of Order XLIII Rule 1-A CPC.
- iii. That in terms of Section 114 of the Indian Evidence Act, 1872 there exists a presumption in respect of judicial acts and orders which cannot be subjected to an enquiry on unsubstantiated allegations.
- iv. That in terms of Order 6 Rule 4 of the CPC, an allegation of ‘fraud’ necessarily requires it to be pleaded in specific particulars and in apparent absence thereof from the Application dated 27.01.2010, there arises no occasion for the Ld. Trial Court to hold any enquiry.
- v. Alternatively, in terms of Chapter XIX of the Civil Manual a judicial enquiry is not contemplated in an Application under Order XXIII Rule 3 CPC.

- g. That vide Order dated 18.08.2016 the Ld. Trial Court dismissed the Application dated 27.01.2010.
- h. The Respondent No. 1 preferred a Review Application dated 08.11.2013 against the Order dated 18.08.2016.
- i. The Respondent No. 1 preferred a Review Application dated 18.08.2016 and the Ld. Trial Court vide Order dated 23.10.2018 reviewed its Order dated 18.08.2016 and directed that an inquiry be held in respect of the Consent Terms and Consent Decree dated 19.11.1998 and 21.11.1998.
- j. Being aggrieved by the Order 23.10.2018, the Appellants have preferred a Revision *viz.* CRA/41/2018 before this Hon'ble High Court. That vide Order dated 01.07.2019, this Hon'ble High Court was pleased to grant *ad-interim* relief in the nature of stay of proceedings and thereafter vide Order dated 26.02.2020, this Hon'ble High Court has been pleased to admit the above Civil Revision Application.

ANNEXED HERETO AND MARKED AS **ANNEXURE – 6 COLLY** ARE THE ORDERS DATED 01.07.2019 AND 26.02.2020 PASSED BY THIS HON'BLE HIGH COURT

- k. It is pertinent to state at this juncture that the then President of the Respondent No. 1, Mr. Marvin Gonsalves, in his personal capacity had filed a Writ Petition *viz.*, Writ Petition No. 102 of 2009 before this Hon'ble High Court seeking inquiry in respect of the properties in question. This Hon'ble High Court directed the Deputy Collector and S.D.O., Panaji to hold a detail inquiry looking into the allegations of the Comunidade and its constituents. It is

submitted that the said inquiry *viz.* Case No. ILL/CNV/19/2009-881 by the Deputy Collector. It is pertinent to state at this juncture that although the inquiry was initiated by the Dy. Collector on the basis of complaints made by the Comunidade of Bambolim, the said Comunidade chose to arrayed themselves as party respondents in the said inquiry instead of being in its forefront, or becoming State witnesses which itself goes to show that the constituents of the Comunidade of Bambolim were litigating with ulterior motive as they on their own did not have any evidence to show that the Comunidade of Bambolim had anything to do with the lands owned by the Appellant. It is submitted that the Plaintiffs participated in the inquiry which lasted for a period of over 2 years. It is submitted that in cross examination the then office bearers of the Plaintiffs clearly admitted that the boundaries of the properties in question owned by the Appellant were different than those claimed by the Comunidade of Bambolim.

- l. It is submitted that vide Order dated 01.08.2011 the Deputy Collector submitted its finding before this Hon'ble High Court that the properties bearing Survey No. 93/2, 93/3 and 93/4 were not tenanted lands and accordingly Writ Petition No. 102/2009 was disposed off.

ANNEXED HERETO AND MARKED AS **ANNEXURE**
- 7 IS THE COPY OF THE ORDER DATED 01.11.2011

- m. That thereafter, the constituents of the Respondent No. 1 once again approached this Hon'ble High Court vide Writ Petition Nos. 506 of 2009, 557 of 2009, 577 of 2009 and

657 of 2011. It is submitted that the contentions raised in the aforementioned writ petitions were identical to those raised in these suit proceedings. It is submitted that all the contentions were rejected by this Hon'ble High Court vide Order dated 29.03.2012.

ANNEXED HERETO AND MARKED AS **ANNEXURE**
– 8 IS THE COPY OF THE ORDER DATED 29.03.2012

- n. It is submitted that the constituents of the Respondent No. 4 assailed the Order dated 29.03.2012 passed by this Hon'ble High Court before the Hon'ble Supreme Court of India vide Special Leave Petition No. 19595-19598/2012. It is submitted that the Hon'ble Supreme Court of India vide Order dated 24.08.2012 rejected the contentions of the constituents of the Respondent No. 4.

ANNEXED HERETO AND MARKED AS **ANNEXURE**
– 9 IS THE COPY OF THE ORDER DATED 24.08.2012

- o. The Appellants are *bona fide* purchasers of the properties surveyed under Survey No. 93/2, 93/3 and 93/4 having purchased the same for a valuable consideration. The Appellants at the time of entering into the Deeds of Sale dated 25.04.2006 were entitled to, in good faith, assume that the Compromise Terms dated 19.11.1998 which were accepted by the Hon'ble Civil Judge Senior Division, Panaji, at the time of drawing up of the Consent Decree dated 21.11.1998, were legally entered into and that the internal requirements and procedures had been complied with and hence beyond suspicion or reproach.

- p. It is submitted that the Forms I & XIV of Record of Rights in respect of Survey Nos. 93/2, 93/2 and 93/4 at the time of execution of the Deeds of Sale stood in the name of Maximo Mergulhao and have since been mutated in the name of the Appellants as the occupant in possession.
- q. It is submitted that the Appellants have been granted conversion sanads, vide Conversion Sanads bearing Nos. RB/CNV/TIS/133/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/2, Conversion Sanad No. RB/CNV/TIS/135/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/3, and Conversion Sanad No. RB/CNV/TIS/03/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/4.
- r. It is further submitted that Technical Clearance Orders have been issued by the Town & Country Planning Department Panaji Reference No. TIS/6124/BAM/TCP/12/384 Dated 03.04.2012 in respect of property bearing survey No. 93/2 of Village Bambolim , Taluka Tiswadi , Goa; Reference No. TIS/7554/BAM/TCP/13/377 Dated 27.02.2013 in respect of property bearing survey No. 93/3 of Village Bambolim, Taluka Tiswadi, Goa; and Reference No. TIS/6087/BAM/TCP/12/1045 Dated 27.08.2012 in respect of property bearing survey no.93/4 of Village Bambolim , Taluka Tiswadi , Goa in favour of the Appellants.
- s. It is submitted that NOCs from Health Department Ref No. UHC/DHS/NOC/12-13/326 dated 27.04.2012 in respect of property surveyed under Survey No. 93/2; Ref

No. UHCP/DHS/NOC/12-13/3557 dated 13.3.2013 in respect of property surveyed under Survey No. 93/3; and Ref No. UHCP/DHS/NOC/12-13/1995 Dated 21.09.2012 in respect of property surveyed under Survey No. 93/4, have been duly obtained by the Appellants.

z. It is further submitted that Environmental Sanction has been accorded vide order bearing Ref No. 3-181-2010/STE-DIR/105 Dated 22.03.2013 in respect of property surveyed under Survey No. 93/2, and similarly vide order bearing Ref No: 3-181-2010/STE-DIR/104 Dated 22.03.2013 in respect of property surveyed under Survey No. 93/4 at the behest of the Appellants.

u. It is submitted that the Appellants have obtained Construction License Ref No. VP/CBT/2013-14/CONST/186 Dated 02.05.2013 in respect of property bearing survey no.93/2 of Village Bambolim, Taluka Tiswadi , Goa; vide Ref No.VP/CBT/2013-14/CONST/88 dated 16.04.2013 in respect of property surveyed under Survey No. 93/3 of Village Bambolim, Taluka Tiswadi , Goa, and vide Ref No.VP/CBT/2012-13/CONST/2041 Dated 30.03.2013 in respect of property surveyed under Survey No. 93/4 of Village Bambolim, Taluka Tiswadi , Goa, by the Village Panchayat of Curca, Bambolim and Talaulim thus entitling the Appellants to undertake construction activity in the said properties.

4. However, the Ld. Trial appears to have totally lost sight of the above as also the fact that the Plaintiffs had miserably failed to satisfy any of the three predicates that determine the grant of an injunctory relief. In this view of the matter, the Ld. Trial Court has acted with perversity and arbitrariness.

5. Aggrieved by the Impugned Order dated 13.03.2020 the Appellants prefer this Appeal on the following amongst other grounds which are urged in the alternate and without prejudice to one another:-

GROUNDS

- [A] That the Impugned Order dated 13.03.2020 passed by the Ld. Trial Court is illegal, unlawful and cannot be sustained in law.
- [B] The Appellants at the inception had raised a Preliminary Objection to the effect that the Suit/ Application for Temporary Injunction could not be entertained by reason of being barred by the Principle of *Estoppel by Judgment*. It was strenuously urged before the Ld. Trial Court that the subject-matter of the Suit having already been encompassed in the Consent Decree dated 21.11.1998 passed by the Court of Civil Judge Senior Division in S.C.S. No. 222/1994/B, the Plaintiffs were now precluded from re-agitating the very same issues. In support of this objection, the Appellants placed reliance on the judgment rendered by this Hon'ble High Court in the case of *M/s Mahavir Associates v/s Ravindra Jagannath Patil & Others*, reported in 2014 (1) ALL M.R. 594 9 a copy of which judgment was placed before the Ld. Trial Court. The Ld. Trial Court has however neither recorded the above submission/ argument nor has the above judgment been cited let alone distinguished in the Impugned Order. It is submitted that the Consent Terms and Consent Decree dated 19.11.1998 and 21.11.1998 till date have been stayed

nor set aside. By virtue thereof, the Ld. Trial Court was estopped from entertaining or deciding any Application for Temporary Injunction. It is humbly submitted that the Ld. Trial Court has fallen into a grave error and on this ground alone the Impugned Order deserves to be quashed and set aside.

[C] The Ld. Trial Court failed to consider that the Appellants herein is a *bona fide* purchaser of the properties surveyed under Survey No. 93/2, 93/3 and 93/4 having purchased the same for a valuable consideration. The Appellants at the time of entering into the Deeds of Sale dated 25.04.2006 was entitled to, in good faith, assume that the Compromise Terms dated 19.11.1998 which were accepted by the Hon'ble Civil Judge Senior Division, Panaji, at the time of drawing up of the Consent Decree dated 21.11.1998, were legally entered into and that the internal requirements and procedures had been complied with and hence beyond suspicion or reproach.

[D] The Ld. Trial Court failed to consider that the Appellants had established a *prima facie* case in their favour inasmuch as since inception of survey records in the State of Goa, the name of Maximo Mergulhao (predecessor in title of Appellants Nos. 1 and 2) stood recorded in Form I & XIV of Record of Rights pertaining to the suit properties which then stood mutated in the name of the Appellants themselves subsequent to the Deeds of Sale dated 25.04.2006. The Ld. Trial Court appears to have lost sight of the fact that the Appellants thus enjoyed presumption of title under Section 105 of Land Revenue Code, 1968.

[E] The following categorical admissions and self-contradictory statements contained in the Suit Plaint were brought to the notice of the Ld. Trial Court:—

- a. That while on one hand the Plaintiffs contend at Paragraph 17 of the Suit Plaint that Lote No. 48-A 2nd Part forms a part of the Suit Property. On the other hand, at Paragraph 11 of the Plaint it is claimed that the same was entirely acquired. This self- contradictory averment itself exposed the fallacy in the claim of the Plaintiffs for, if Lote 48-A 2nd Part was entirely acquired, it could not be and cannot be said to be forming a part of the properties surveyed under Survey No. 93/2, 93/3 or 93/4;
- b. It is averred at Paragraphs 10, 20 & 21 of the Suit Plaint that the survey records *viz.* Form I & XIV of Record of Rights in respect of the Suit Properties came into existence since 1972-73. By virtue of the above averment *prima facie* knowledge of the fact that the name of Maximo Mergulhao (predecessor in title of Appellants Nos. 1 and 2) stood recorded in Form I & XIV of Record of Rights pertaining to the suit properties could be clearly attributed to the Plaintiffs since 1972. The records which then stood mutated in the name of the Appellants themselves subsequent to the Deeds of Sale dated 25.04.2006 which the Plaintiffs chose not to assail. Hence, the Suit itself was barred by the Law of Limitation;
- c. Further, and once again at Paragraph 21 of the Suit Plaint, it is categorically admitted by the Plaintiffs that Promulgation of Survey Records in respect of Village

Bambolim came to be effected in the year 1985. In view of such categorical statement, knowledge can be attributed to the Plaintiffs since 1985. The Plaintiffs, even at this stage, chose not to take exception to the finalized entry in Occupant's Column. Hence, besides the Suit being barred by the Law of Limitation, the Plaintiffs had acquiesced with the same;

- d. That in terms of Paragraphs 26 & 27 of the Suit Plaintiff it is categorically admitted by the Plaintiffs that certain lands were granted to the predecessors-in-title of the Appellants by way *Remissão dos Foros* or by remission of title by payment of 20 years of annuities under the Code of Comunidades. The Plaintiffs by virtue thereof admitted the title of the Appellants and their predecessor in title. It was fervently pointed out to the Ld. Trial Court that the Plaintiffs craftily and *simpliciter* deny that the lands acquired were not suit properties. But, fail to identify such lands. It was urged that if the Plaintiffs' claim is to be accepted, the least that is expected of the Plaintiffs is to identify the properties that were acquired by the predecessor-in-title of the Appellants Nos. 1 and 2.

The Ld. Trial Court appears to have lost sight of all of the above submissions.

- [F] It is submitted that a *Comparative Area Chart* based on the averments contained in the Suit Plaintiff and the Survey Records was furnished to the Ld. Trial Court in order to assist the Ld. Trial Court to test the submissions of the Plaintiffs in relation to their claim that the suit properties correspond to the properties allegedly named "Saveli Gali" and/ or "Oros".

Saveli Gali	
Lote No.	Area
47	65,848 m ²
48A	1,15,696 m ²
48B	32,122 m ²
49	1,32,045 m ²
Total	3,45,711 m²

Oros	
43B	29,584 m ²

Oros + Saveli Gali = 3,75,295 m²

Current Survey	
Survey No.	Area
89/1	2,06,125 m ²
89/2	250 m ²
89/3	29,726 m ²
89/3-A	331 m ²
89/3-B	300 m ²
89/3-C	419 m ²
89/3-D	337 m ²
89/3-E	235 m ²
89/3-F	390 m ²
89/3-G	262 m ²
89/3-H	325 m ²
Total	2,38,375 m²

Current Survey	
Survey No.	Area
90/1	5,650 m ²
90/2	6,150 m ²
Total	11,800 m²

Current Survey	
Survey No.	Area
93/1	2,30,250 m ²
93/1-A	24,000 m ²
93/2	35,600 m ²
93/3	26,825 m ²
93/4	35,075 m ²
Total	3,51,750 m²

Grand Total of Survey Nos. 89 + 90 + 93 = 6,01,925 m²

It is respectfully submitted that from the Plaintiffs' own averments it was demonstrably clear that the so-called "Saveli Gali" and/or "Oros" could have never corresponded to the suit properties and other survey numbers.

[G] It is submitted that the Plaintiffs had placed reliance on certain private records such as Tombo records relating to some properties known as "Saveli Gali" and "Oros". That in order to assist the Ld. Trial Court in examining the said records, albeit, at *prima facie* stage, the Appellants invited the attention of the Ld. Trial Court to Art. 210 of the Code of Comunidades which deals with manner of preparation of

Tombo Registers. It was urged before the Ld. Trial Court that Art. 212 of the Code, required that prior to taking up the inventory of properties of a Comunidade, the same ought to be announced in the Official Gazette and in the newspapers of the locality, if any, in order to enable the owners of the adjoining lands and as well as those interested in the Comunidade to follow the process of law and present any claims that they may have, which is to be duly recorded by the clerk of the Comunidade in a special book and decided administratively. In absence of any of the above, the Plaintiffs had failed to show compliance of Articles 210 and 212 of the Code and such the Tombo records produced were of questionable integrity. More so, because the said records were private documents not available in the public domain.

[H] Further, it was urged before the Ld. Trial Court that in view of the fact that the Tombo records produced by the Plaintiffs were in their own admission prior to the land acquisition of 1966 and not updated after the land acquisition, the same were neither accurate nor contemporaneous to the Survey Records maintained by the Survey Department. It was urged before the Ld. Trial Court that preference ought to be given to the records of the Government of Goa over the inaccurate private records of the Comunidade. The Ld. Trial Court however appears to have not only lost sight to the above but also failed to record the above submission of the Appellants.

[I] The Plaintiffs besides producing a document namely, Form II or *Gunakar* Book, had failed to place before the Ld. Trial Court any kind of survey record maintained by the

Government of Goa indicating their ownership or possession in respect of the suit properties. In this connection it was urged before the Ld. Trial Court that *Gunakar* Book was not a title document. In order to assist the Court in understanding the meaning of the term “*Gunakar*”, the Appellants placed on record the relevant extract from *Manual of Land Surveying* by R. G. Gordon, I.C.S. (1912). Further, the Appellants also placed on record the decision rendered by this Hon’ble High Court in the case of *Govindrao Shankarrao Reddy v. Rukminibai Reddy* wherein it has been held by this Hon’ble Court that *Gunakar* Book is not a title document. The Ld. Trial Court however appears to have not only lost sight to the above but also failed to record the above submission of the Appellants.

[J] The Appellants brought to the notice of the Ld. Trial Court, a document produced by the Plaintiffs *viz.* Order dated 15.01.1982 passed by the Inspector of Survey and Land Records who undertook an inquiry under the Goa, Daman and Diu Land Revenue (Inquiry into Title of Land) Rules, 1969 and confirmed the name of the Predecessor-in-Title of the Defendants in respect of suit properties. It was highlighted before the Ld. Trial Court that the Plaintiffs were a party to the said proceedings but chose not to take exception to the same. The Ld. Trial Court however appears to have not only lost sight to the above but also failed to record the above submission of the Appellants.

[K] The Appellants brought to the notice of the Ld. Trial Court, that in the year 1994, at the time of institution of S.C.S. No. 222/1994/B before the Court of Civil Judge

Senior Division, the Plaint was restricted only to Survey No. 89/3 of Village Bambolim. It was urged before the Ld. Trial Court that even at that stage, the Plaintiffs had chosen not to take exception to the survey entries by seeking declaration of title in respect of the suit properties. The Ld. Trial Court however appears to have not only lost sight to the above but also failed to record the above submission of the Appellants.

[L] The Plaintiffs chose to settle the dispute and the suit properties are encompassed in the Consent Decree dated 21.11.1998 passed by the Civil Judge Senior Division in S.C.S. No. 222/1994/B. The Ld. Trial Court however appears to have not only lost sight to the above but also failed to record the above submission of the Appellants.

[M] It was urged on behalf of the Appellants that the Plaintiffs' claim that the suit properties are tenanted lands and the allegation of conducting collusive proceedings for deletion of their names in connivance with the tenants cannot be believed because, pursuant to the Orders of this Hon'ble High Court in Writ Petition No. 102/2009 (Marvin Gonsalves & Ors. v. State of Goa, the Deputy Collector conducted detailed enquiry *viz.* ILL/CONV/19/2009 and vide Order dated 01.08.2011 held that the suit properties were not tenanted lands. It was further highlighted that this fact alone was showed that the suit properties were not lands of the Comunidade. It is pointed out to the Ld. Trial Court that in the cross examination of the then office bearers of the Plaintiffs, it was clearly admitted by them that the boundaries of the properties in question owned by the Appellants were different from those claimed by the

Comunidade of Bambolim. The Ld. Trial Court however appears to have not only lost sight to the above but also failed to record the above submission of the Appellants.

- [N] The Ld. Trial Court failed to consider that a Division Bench of this Hon'ble High Court vide its Order dated 29.03.2012 dismissed multiple Writ Petitions filed by the constituents of the Plaintiff *viz.*– Writ Petition Nos. 506 of 2009, 557 of 2009, 577 of 2009 and 657 of 2011.

- [O] The Ld. Trial Court further failed to take into consideration that the constituents of the Plaintiffs assailed the Order dated 29.03.2012 passed by the Hon'ble High Court before the Hon'ble Supreme Court of India vide Special Leave Petition No. 19595-19598/2012 and that the Hon'ble Supreme Court of India vide Order dated 24.08.2012 rejected the contentions of the constituents of the Plaintiffs.

- [P] The Ld. Trial Court was informed that the constituents of the Plaintiffs have thereafter filed C.S. No. 66/2009 (Benevelo Boaventura D'Souza & Ors. v. State of Goa) which is pending adjudication before the Hon'ble District Judge – I, Panaji wherein the Plaintiffs herein are co-Plaintiffs in C.S. No. 66/2009 (Benevelo Boaventura D'Souza & Ors. v. State of Goa) and that, as such, the present proceedings were not maintainable.

- [Q] The Ld. Trial Court failed to consider the submissions that the Appellants Nos. 1 and 2 are senior citizens and had purchased the suit properties for a valuable consideration on 25.04.2006.

[R] The Ld. Trial Court failed to consider that the name of the Appellant No. 1 stands recorded in the Form I & XIV of Record of Rights of all the three suit properties (93/2, 93/3 & 93/4).

[S] The Ld. Trial Court failed to consider that the name of the Appellants have been granted the following licenses and permissions by various authorities :—

a. Conversion Sanads bearing Nos. RB/CNV/TIS/133/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/2, Conversion Sanad No. RB/CNV/TIS/135/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/3, and Conversion Sanad No. RB/CNV/TIS/03/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/4.

b. Technical Clearance Orders have been issued by the Town & Country Planning Department Panaji Reference No. TIS/6124/BAM/TCP/12/384 Dated 03.04.2012 in respect of property bearing survey No. 93/2 of Village Bambolim , Taluka Tiswadi , Goa; Reference No. TIS/7554/BAM/TCP/13/377 Dated 27.02.2013 in respect of property bearing survey No. 93/3 of Village Bambolim, Taluka Tiswadi, Goa; and Reference No. TIS/6087/BAM/TCP/12/1045 Dated 27.08.2012 in respect of property bearing survey no.93/4 of Village Bambolim , Taluka Tiswadi , Goa in favour of the Appellants.

c. NOCs from Health Department Ref No. UHC/DHS/NOC/12-13/326 dated 27.04.2012 in

respect of property surveyed under Survey No. 93/2; Ref No. UHCP/DHS/NOC/12-13/3557 dated 13.3.2013 in respect of property surveyed under Survey No. 93/3; and Ref No. UHCP/DHS/NOC/12-13/1995 Dated 21.09.2012 in respect of property surveyed under Survey No. 93/4, have been duly obtained by the Appellants.

d. Environmental Sanction has been accorded vide order bearing Ref No. 3-181-2010/STE-DIR/105 Dated 22.03.2013 in respect of property surveyed under Survey No. 93/2, and similarly vide order bearing Ref No: 3-181-2010/STE-DIR/104 Dated 22.03.2013 in respect of property surveyed under Survey No. 93/4 at the behest of the Appellants.

e. Construction License Ref No. VP/CBT/2013-14/CONST/186 Dated 02.05.2013 in respect of property bearing survey no.93/2 of Village Bambolim, Taluka Tiswadi , Goa; vide Ref No.VP/CBT/2013-14/CONST/88 dated 16.04.2013 in respect of property surveyed under Survey No. 93/3 of Village Bambolim, Taluka Tiswadi , Goa, and vide Ref No.VP/CBT/2012-13/CONST/2041 Dated 30.03.2013 in respect of property surveyed under Survey No. 93/4 of Village Bambolim, Taluka Tiswadi , Goa, by the Village Panchayat of Curca, Bambolim and Talaulim thus entitling the Appellants to undertake construction activity in the said properties.

[T] The Ld. Trial Court failed to consider that irreparable loss would be occasioned to the Appellants Nos. 1 & 2 in the event the Application at Exhibit D-4 filed by the Plaintiffs

was allowed. Whereas, *Per Contra* the Consent Terms & Consent Decree (which till date have not been set-aside) constitute an Agreement between the Plaintiffs and the Defendants therein and the said agreement quantifies liquidated damages to which the Plaintiffs can be entitled to.

[U] The Ld. Trial Court failed to consider that in terms of the Consent Decree dated 21.11.1998 and specifically in terms of clause 7 thereof it is agreed that in the event predecessor of these Appellants fails to hand over the subdivided plots to the Plaintiffs within a period of 36 months from the date of execution of the consent terms then, they will be liable to pay compensation to the Plaintiffs at the rate of Rs. 300/- per month to the Plaintiffs in respect of each of such plots and as such loss, if any, to the Plaintiffs can be compensated in terms of money.

[V] The Ld. Trial Court has neither recorded nor considered the submission of the Appellants herein as also the case-law relied upon in support of the submissions advanced.

[W] The Ld. Trial Court has failed to distinguish the judicial precedents relied upon by the Appellants.

[X] The Impugned Order is cryptic and fails to divulge any reason for the exercise of the discretionary powers of grant of injunction.

[Y] Such other and further grounds that may be urged at the time of hearing.

6. The Appellants are entitled to an Order calling of records and proceedings viz., No. Special Civil Suit No. 52 of 2013/A and upon perusing the same for ascertaining its legality and validity to set aside the said Order dated 13.03.2020 and dismiss the Application for Temporary Injunction.
7. The Appellants have not filed any other proceeding either in this Hon'ble Court or in the Supreme Court of India, regarding the subject matter of this Appeal.
8. The Appellants have no other alternate or efficacious remedy available, and the reliefs prayed for in this Appeal if granted, will be complete in themselves.
9. The cause of action has arisen within the jurisdiction of this Hon'ble Court. Therefore, this Hon'ble Court has jurisdiction to hear and decide this Appeal.
10. The Appellants have paid the prescribed Court Fees herewith.
11. The Appellants therefore pray as under:-

PRAYERS

- (A) That this Hon'ble Court also be pleased to call for the records and proceedings viz., Special Civil Suit No. 52 of 2013 from Court of the Civil Judge Senior Division 'A' Court at Panaji, Goa and upon perusing the same for ascertaining its legality and validity, set aside the Order dated 13.03.2020 and to dismiss the Application bearing Exhibit No. D-4 dated 08.11.2013;

- (B) That this Hon'ble Court also be pleased to stay the Order dated 13.03.2020 passed by the Civil Judge Senior Division 'A' Court at Panaji;
- (C) For *ad-interim ex parte* reliefs in terms of prayer clauses 'B';
- (D) For such other and further relief that this Hon'ble Court deems fit and proper;
- (E) For costs.

(APPELLANT NO. 1)

(APPELLANT NO. 2)

Place :- Panaji, Goa.

Date :- .04.2020

VERIFICATION

I, Pascoal Irineu Trindade, son of Augustine Trindade, 77 years of age, Indian national, resident of Palbrika Mansion, Dona Paula, Panaji, Goa, the Appellant No. 1 herein solemnly declare that whatever is stated in foregoing paragraphs 1 to ____ is true to my own knowledge and belief and that paragraph ____ is the prayer clause.

Solemnly affirmed this ____th day of April, 2020 at Panaji, Goa.

(Deponent)

Identified by me:

RAUNAQ RAO, ADVOCATE

**IN THE HIGH COURT OF BOMBAY AT GOA
AT PANAJI – GOA**

APPEAL FROM ORDER NO. OF 2020

IN THE MATTER OF:

PASCOAL TRINDADE & ANR.

... Appellants

Versus

COMUNIDADE OF BAMBOLIM & ORS.

... Respondents

AFFIDAVIT

I, Pascoal Irineu Trindade, son of Augustine Trindade, 77 years of age, Indian national, resident of Palbrika Mansion, Dona Paula, Panaji, Goa, the Appellants herein do hereby on solemn oath and affirmation state as under:-

1. That I have read the contents of the instant Application and the same are as per my say.
2. That the contents of the foregoing paragraphs 1 to __ are true to my knowledge and also based on legal advice which I believe to be true.
3. That paragraph __ is the prayer clause.

4. That the contents of foregoing paragraphs 1 to 3 are true and correct.

Solemnly affirmed at Panaji, Goa, on this ___th day of April, 2020.

(Deponent)

Identified by me:

RAUNAQ RAO, ADVOCATE